

24STCP04125 24STCP04125

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-08-12

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Case Number: 24STCP04125 Hearing Date: August 12, 2026 Dept: 833

City of Los Angeles Case No. 24STCP04125

Hearing:

August 12, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

Service

Employees International Judge: Joseph Lipner

Union,

Local 721

[Tentative] Order Regarding

Motion to Tax Costs

Petitioner/Cross-Petition Respondent

City of Los Angeles ("City") moves to strike costs, or in the alternative, an order taxing certain costs claimed by Respondent/Cross-Petitioner Service Employees International Union, Local 721 ("SEIU").

The

Court STRIKES \$86.00 in costs. The Court otherwise denies the motion.

BACKGROUND

On April 30, 2026, the Court signed the judgment, which reads:

Cross-Petitioner

Service Employees International Union, Local 721's petition for writ of mandate pursuant to Code of Civil Procedure § 1085 commanding the City to immediately comply with the underlying City of Los Angeles Employee Relations Board ("ERB") Decision, Decision No. U-2159, and the September 23, 2023 order issued in that matter ("ERB Order") is GRANTED in part and DENIED in part.

(Judgment,
¶ 2.)

LEGAL STANDARD

"[T]he award of costs to a prevailing applicant in a mandamus proceeding normally lies within the discretion of the court under Code of Civil Procedure section 1095." (Tripp v. Swoap (1976) 17 Cal.3d 671, 680.) Code of Civil Procedure Section 1095 does not determine who a "prevailing applicant" is. For that question, the Court looks to Code of Civil Procedure Section 1032. Section 1032 defines a prevailing party as (1) the party with a net monetary recovery; (2) a defendant in whose favor a dismissal is entered; (3) a defendant where neither the plaintiff nor defendant obtains any relief, and (4) a defendant as against those plaintiffs who do not recover any relief against that defendant. (Code Civ Proc., § 1032, subd. (a)(4).) When the prevailing party is one not specified, the trial court must determine who the prevailing party is and has discretion about whether to allow costs. (Ibid.)

Allowable

costs are those that are reasonably necessary to the conduct of the litigation. (Code Civ Proc., § 1033.5, subd. (c)(2).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as

costs.” (Ibid.)

DISCUSSION

A. SEIU is the prevailing party

The

Court finds SEIU is the prevailing party in this action. All components of SEIU’s petition were granted, with the exception that the City was not required to comply with B.2. of the Board’s Order - Return Andy Morales to the assignment of Labor Liaison, as he was removed from that assignment due to unlawful interference, retaliation, and discrimination”—because he had retired from the City. (Minute Order of March 9, 2026, p. 13.) The mootness of one part of SEIU’s petition does not take away from the fact that SEIU accomplished all of their other objectives. The Court has the authority to find that SEIU is the prevailing party under the second sentence of Code Civ Proc., § 1032, subd. (a)(4).

B. Requests to decrease costs

The

City moves to tax costs relating to the “Response to Petition” filed February 3, 2025, which cost \$465.62. The “Response to Petition” appears to have been SEIU’s “Answer” to the initial petition. (Saba Decl., ¶ 2.) An “Answer” is a reasonably necessary cost in a writ proceeding.

The

City moves to tax costs relating to the “Stipulation to Change Designations and Departments.” This stipulation changed the names of some of the parties and moved the case to a writs department. (Saba Decl., ¶ 3.) The Court finds that this stipulation was a reasonably necessary cost in a writ proceeding.

The

City moves to tax costs relating to the delivery of a Courtesy Copy of Proposed Final Judgment to Department 82. The declaration attached to SEIU’s papers does not explain why a courtesy copy of the judgment was necessary. Accordingly, the Court taxes costs by \$86.00.

The

City moves to tax costs relating the notice of trial setting conference,

request of judicial notice, and proposed final judgment. The Court requested SEIU give notice of the notice of trial setting conference on April 16, 2025. The request for judicial notice as part of an opening brief and a proposed final judgment are both reasonably incurred costs in a writ proceeding.

CONCLUSION

The Court GRANTS IN PART the motion to tax costs by taxing \$86.00. Except as so ordered, the Court denies the motion. .

IT IS SO ORDERED.

Dated: August 12,
2026

Joseph
Lipner

Superior
Court Judge